

Article 14 in Constitution of India

14. Equality before law

The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India. **Editorial Comment** -Article 14 rejects any type of discrimination based on caste, race, and religion, place of birth or sex. This Article is having a wide ambit and applicability to safeguard the rights of people residing in India.

This article is divided into two parts:

Equality before the Law: This part of the article indicates that all are to be treated equally in the eyes of the law. This is a negative concept as it implies the absence of any privilege in favor of any person. This is a substantive part of the article.

Equal protection of the Laws: This part means that the same law will be applied to all the people equally across the society. This is a positive concept as it expects a positive action from the state. This is a procedural part of article 14.

“The dissent of Justice Subba Rao in the State of U.P. v. Deoman Upadhyaya 1960 stated that Article 14 comprises both “positive content” as well as “negative content”. Whereas, equality before the law is a negative content, equal protection of the laws exhibits a positive content of Article 14.”

The doctrine of Anti Arbitrariness: The scope of article 14 was drastically increased by the Supreme Court by including the executive discretion under its ambit. In the case of E.P. Royappa v. State of Tamil Nadu, 1974, the court said that Article 14 gives a guarantee against the arbitrary actions of the State. The Right to Equality is against arbitrariness. They both are enemies to each other. So it is important to protect the laws from the arbitrary actions of the Executive.

“The first landmark judgment which actually spotted the virtue of non-arbitrariness in Article 14 was S.G. Jaisinghani v. Union of India . The Court, for the first time held “absence of arbitrary power” as sine qua non to rule of law with confined and defined discretion, both of which are essential facets of Article 14.” In here Justice Subba Rao elaborating on the wide expanse of Article 14 , vide para 14 held thus: “In this context it is important to emphasize that the absence of arbitrary power is the first essential of the rule of law upon which our whole constitutional system is based. In a system governed by rule of law, discretion, when conferred upon executive authorities, must be confined within clearly defined limits.”

In the Maneka Gandhi v. Union of India, 1978, Justice Bhagwati said that Equality is against the arbitrariness of State action. So this doctrine ensures equality of treatment. “The seven-Judge Bench held that a trinity exists between Article 14, Article 19 and Article 21. All these articles have to be read together. Any law interfering with personal liberty of a person must satisfy a triple test: (i) it must prescribe a procedure; (ii) the procedure must withstand the test of one or more of the fundamental rights conferred under Article 19 which may be applicable in a given situation; and (iii)

it must also be liable to be tested with reference to Article 14.”

Natural Justice as a part of Article 14: From the case of *A.K. Kraipak v. Union of India*, It is evident that Natural Justice (natural justice is technical terminology for the rule against bias and the right to a fair hearing (*audi alteram partem*)) is an integral part of Article 14. The court held that “the Principle of Natural Justice helps in the prevention of miscarriage of Justice, These Principles also check the arbitrary power of the State.”

Classification Test: In the case of *Ram Krishna Dalmia v. Justice Tendolkar*, 1958 the Supreme Court describes the jurisprudence of equality before the law. It simply permits the State to make differential classification of subjects (which would otherwise be prohibited by Article 14) provided that the classification is founded on intelligible differentia (i.e. objects within the class are clearly distinguishable from those that are outside) and has a rational nexus with the objective sought to be achieved by the classification.

In the case of *Indra Sawhney v UOI*, 1993 which is a landmark judgment on aspects of reservation in India. “The Court interpreted the relation between Article 14 and Article 16. It was held that Article 16(1) is a facet of Article 14. Just as Article 14 permits reasonable classification, so does Article 16(1). A classification may involve reservation of seats or vacancies. The principle aims of Article 14 and 16 is equality and equality of opportunity and Clause (4) of Article 16 is a means of achieving the very same objective. Both the provisions have to be harmonized keeping in mind the fact that both are the restatements of the principle of equality enshrined in Article 14.”

Further expansion of Article 14 was done in the case of *Visakha v State of Rajasthan*, 1997

“The judgment sought to enforce the fundamental rights of working women under Articles 14, 19 and 21 of the Constitution of India. Sexual Harassment violates the fundamental right of the women of gender equality which is codified under Article 14 of Indian Constitution and also the fundamental right to life and to live a dignified life. The Court held that even though there is no express provision for sexual harassment at workplace under Indian Constitution, it is implicit through these fundamental rights.” (references mentioned below)

Expansion of Article 14 in terms of defining Gender: In the case of *National Legal Service Authority [NALSA] v UOI*, 2014.

“This case was filed by the National Legal Services Authority of India (NALSA) to legally recognize persons who fall outside the male/female gender binary, including persons who identify as “third gender”. While drawing attention to the fact that transgender persons were subject to “extreme discrimination in all spheres of society”, the Court held that the right to equality (Article 14 of the Constitution) was framed in gender-neutral terms (“all persons”). Consequently, the right to equality would extend to transgender persons also.”

Further in *Shayara Bano v UOI*, 2016 “the 5 Judge Bench of the Supreme Court pronounced its decision in the Triple Talaq Case, declaring that the practice of instantaneous triple talaq

[Talaq-ul-biddat] was unconstitutional. The Bench observed that the fundamental right to equality guaranteed under Article 14 of the Constitution, manifested within its fold, equality of status. Gender equality, gender equity and gender justice are values intrinsically entwined in the guarantee of equality, under Article 14.”

These above discussed landmark cases and many more have contributed to expand the ambit and scope of Article 14 of the Constitution of India, to strive for a more equal and fair society.

References

SCC online

Blog Ipleaders

Wikipedia

Legal Service India

Equality Human Rights